

Amendment No. 1 to HB1644

Farmer
Signature of Sponsor

AMEND Senate Bill No. 1843

House Bill No. 1644*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 17, is amended by adding the following as a new part:

39-17-2001. This part is known and may be cited as the "Nitrous Oxide Abuse Prevention and Retail Sale Prohibition Act."

39-17-2002. As used in this part, unless the context otherwise requires:

(1) "Nitrous oxide" means:

(A) N₂O, a colorless gas or liquid that is also referred to as dinitrogen monoxide, nitrogen oxide, or laughing gas; and

(B) Any substance containing nitrous oxide; and

(2) "Retail seller" means a tobacco vending machine, place, store, booth, concession, truck or vehicle, person, partnership, firm, entity, corporation, or association engaged in the business of making sales at retail of nitrous oxide directly to the ultimate consumer within this state.

39-17-2003.

(a)

(1) It is unlawful for a retail seller to sell or offer for sale nitrous oxide.

(2) A retail seller who violates subdivision (a)(1) is subject to a civil penalty of two thousand five hundred dollars (\$2,500) for the first violation and all nitrous oxide sold or offered for sale is deemed to be contraband and must be seized by the enforcing authority.

(3) For a second or subsequent violation of subdivision (a)(1), a retail seller who sells or offers for sale nitrous oxide is subject to a civil penalty of five thousand dollars (\$5,000), and all nitrous oxide sold or offered for sale is deemed to be contraband and must be seized by the enforcing authority. If the retail seller has been issued a certificate, permit, or license authorizing the sale of products at retail, including, but not limited to, beer, wine, alcoholic beverages, or hemp-derived cannabinoids, then the issuing authority must revoke the certificate, permit, or license upon a second or subsequent violation of this section. The retail seller may reapply for a retail certificate, license, or permit revoked pursuant to this subdivision (a)(3) no earlier than twelve (12) months from the date of the revocation.

(b)

(1) It is an offense for a person to sell, offer to sell, deliver, or give away to another nitrous oxide if the person has reasonable cause to suspect that the nitrous oxide sold, offered for sale, delivered, or given away will be used for the purpose of causing a condition of intoxication, inebriation, elation, dizziness, excitement, stupefaction, paralysis, or the dulling of the brain or nervous system, or disturbing or distorting of the audio or visual processes.

(2) A violation of subdivision (b)(1) is a Class E felony.

(c) This section does not prohibit the sale or offering for sale of nitrous oxide by a manufacturer, distributor, or wholesaler for medical or dental purposes or to implement the distribution of beverages or other foodstuffs for commercial purposes.

SECTION 2. Tennessee Code Annotated, Section 39-17-422(a), is amended by deleting the following language:

, or to the use of nitrous oxide to implement the distribution of beverages or other foodstuffs for commercial purposes

SECTION 3. Tennessee Code Annotated, Section 39-17-422(d), is amended by deleting "nitrous oxide,".

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.